

The Assam Education Department Selection Rules, 1981

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State of Assam - Act

The Assam Education Department Selection Rules, 1981

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The Assam Education Department Selection Rules, 1981

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The Assam Education Department Selection Rules, 1981

Published vide Notification No. E.C.L. 1707/76/63, dated 3rd June, 1981

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Notification No. E.C.L. 1707/76/63, dated 3rd June, 1981. - Whereas it is expedient to make rules regulating the method of selection of teachers and principals of Aided Colleges, the Governor of Assam is pleased to make the following Rules, namely :

1.
Short title and commencement.
(1)
These rules may be called the Assam Education Department Selection Rules, 1981.
(2)

They shall come into force with immediate effect.

2.

Definitions.

- In these rules unless there is something repugnant in the subject or context-

(i)

"Chairman" means the Chairman of the Selection Board appointed under these rules ;

(ii)

"Member" means the member of the Selection Board appointed under these rules;

(iii)

"Board" means the Selection Board constituted under these rules ;

(iv)

"Appointing authority" means the Governing Body in respect of posts of Lecturer and Principals of Aided Colleges :

Provided that if the Governing Body stands dissolved or suspended, the authority shall vest in the Government;

(v)

"Aided College" means a college which is in respect of deficit grants-in-aid from the State Government;

(vi)

"Government" means the Government of Assam.

3.

Constitution of Selection Board.

(1)

There shall be constituted a Selection Board for selection of Lecturers and Principals of Aided Colleges.

(2)

The Selection Board shall consist of five members, both official and non-official to be appointed by the State Government. One of the official members shall be Member-Secretary of the Board who will not be below the rank of Deputy Director of Public Instruction under Education Department. The Chairman of the Board may be appointed by the Government from either official or non-official members of the Board.

(3)

The non-official members shall be entitled to Sitting Fee and Travelling Allowance/Daily Allowances at such rates as admissible under the Fundamental and Subsidiary Rules.

(4)

Notwithstanding the foregoing provisions the State Government shall have the power to assign to the Selection Board any other matter of selection which does not come within the purview of the Assam Public Service Commission Regulation or any other Act, for the time being in force.

4.

Tenure of the non-official members.

(1)

The terms of non-official members of the selection board shall be for a period of two years only from the date of issue of the Notification constituting the Board by the Government:

Provided that the State Government may, by a Notification in the official Gazette extend the terms of a Board for a period not exceeding one year.

(2)

The vacancies caused by retirement/resignation/removal or death of any non-official member shall be filled up by the fresh appointment of non-official member for the unexpired period of the term of office of the non-official member in whose place he is appointed.

(3)

The Government may, if so considers necessary, dissolve or reconstitute the Board at any time, or remove any member before the expiry of his term.

(4)

The Chairman of the Selection Board who shall be a whole-time officer of the Board shall be deemed to have vacated the office as soon as he ceases to be a member of the said Board.

(5)

If an official is appointed as Chairman of the Board his emoluments and terms of appointment will be decided by the Government.

5.

The Staff of the Board.

- The non-Gazetted staff of the Board shall consist of Grades III and IV staff as may be determined by the Government from time to time. The Director of Public Instruction Assam shall be the appointing authority of the Grades III and IV staff and they will be governed by the service rules as applicable in case of Government employee in the said Directorate. The non-Gazetted staff will draw their pay and allowance etc. from the establishment of the Director of Public Instruction, Assam.

6.

Notification of vacancies.

- At the commencement of any academic year, the Director of Public Instruction will ascertain the number of existing and probable vacancies for the posts mentioned in sub-rule (1) of Rule 3 for the current and next year and will notify vacancies to the Selection Board by not later than September every year. While doing so the Director shall indicate vacancies required to be filled up from candidates belonging to Scheduled Tribes (Plain), Scheduled Tribes (Hills), Scheduled Caste in accordance with the provisions of the Assam Scheduled Castes and Scheduled Tribes (Reservation of Vacancies in Services and Posts) Act, 1978. Such communication specifying educational qualification, experience, age nationality and any other particulars are as required.

7.

Publication of the advertisement.

- On receipt of the notification and the draft advertisement as mentioned in Rule 6, the Board shall advertise the posts in the Official Gazette and at least in three local dailies having circulation throughout Assam. Such advertisement should be published not later than 15 (Fifteen) days from the date of receipt of the Notification of the draft advertisement by the Board. The advertisement should invariably be communicated to the Director of Employment and Craftsmen Training, the Director of Public Instruction, all Universities in the State and the Education Department of the Government of Assam.

8.

Receipt of applications.

- The Board shall receive the applications within the date fixed in the advertisement and no application received after the due date should be considered on any ground. A register shall be maintained showing full particulars of each application received and date of receipt of the same by the Board. The candidates will be furnished with an acknowledgement receipt of application.

9.

Interview and written tests.

(1)

The Board shall normally hold an interview of the candidates but there will be no bar in holding written tests of candidates if the Selection Board considers it necessary :

Provided that no interview shall be taken in the absence of the Chairman and three other members of the Board.

(2)

The Board may, as and when necessary associate subject specialists or experts in the interview for selection of candidates and such specialists or experts, when associated shall be paid such Travelling Allowance/Daily Allowance as admissible under rules and honorarium as may be determined by the State Government.

10.

Publication of selection list of Lecturers and Principals.

(1)

The Selection Board shall prepare lists of candidates for Lecturers and Principals numbering at least three times of the existing vacancies, and shall forward the list so prepared to the Government. The Government may approve of the lists so prepared by the Selection Board after proper verification of the character and antecedents, and publish these lists in the official Gazette. The lists of Lecturers should be published subject-wise and the Director of Public Instruction, Assam shall forward the lists of candidates for Principals and Lecturers approved by the Government to the Governing Bodies of Aided College.

Note. - Appointment of Principals already in service at the time of bringing the Colleges under deficit system of grants-in-aid may be regularised provided they can fulfill the conditions as laid down in Rule 5 of the Assam Aided College Employees Rules, 1960 as amended from time to time and other rules made on this regard.

(2)

Appointment of lecturers already in service will be subject to Regularisation of their services only when they fulfil the conditions as laid down by the Government from time to time.

(3)

The Board shall maintain a separate list of unselected candidates and a record or reasons for not selecting the candidate for particular post. The list published under this Rule shall be valid till next list is published.

11.

Appointment.

- On publication of the results the concerning appointing authorities shall make appointment only from among the candidates included in the lists.

12.

Government power to issue direction to the Board.

- Notwithstanding anything contained in the above Rules, the Government shall have the authority to issue direction to the Board on any matter as and when necessary may call for any record from the Board and inspect the records of the Board through an officer duly authorised in this behalf.

13.

Repeal and savings.

- The Assam Education Department Selection Rules, 1977 is hereby repealed.

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